

statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. No appearance is required at the hearing on July 22, 2026.

16. 9:00 AM CASE NUMBER: C24-01022
CASE NAME: MICHAEL RAY VS. SIMPSON STRONG-TIE CO., INC.
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS**
FILED BY: RAY, MICHAEL
TENTATIVE RULING:
See Line 15.

17. 9:00 AM CASE NUMBER: C24-01297
CASE NAME: JOEL DE ALBA-PADILLA VS. STAND PETERSON
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: DE ALBA-PADILLA, JOEL JOSE
TENTATIVE RULING:

Summary

Plaintiffs, Joel Jose De Alba-Padilla and Gerald Keene, ("Plaintiffs") on behalf of themselves and all others similarly situated and aggrieved seek Preliminary Approval of a Class Action Settlement with Defendants Wesco International, Inc., Anixter Inc., Anixter International LLC, and Express Services, Inc. ("Defendants"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

The salient terms of the settlement agreement are summarized as follows. Plaintiffs seek Court preliminary approval and certification, for settlement purposes only, a class comprising two distinct groups: (1) the "Anixter Class," consisting of all non-exempt employees employed by Anixter Inc. or Anixter International Inc. in California who worked for Defendants from September 25, 2022, through February 10, 2025; and (2) the "Wesco Class," consisting of all non-exempt employees employed by Wesco International, Inc. and/or Wesco Distribution, Inc. in California who worked for Defendants from May 15, 2020, through February 10, 2025. The Settlement resolves claims for wage and hour violations, including allegations of failure to pay overtime, failure to provide meal and rest periods, failure to pay minimum wages and final wages, failure to provide accurate wage statements, failure to indemnify business expenses, and related claims under the California Labor Code and Unfair Competition Law.

Defendants have agreed to pay a Gross Settlement Amount of \$1,250,000.00, which is subject to escalation if the total number of workweeks worked by class members exceeds 53,690 (representing a 10% increase above the baseline of 48,809 workweeks). In the event of such increase, Defendants may elect either to increase the Gross Settlement Amount proportionally by multiplying the excess workweeks by the Workweek Value of \$25.61, or to terminate the class periods upon reaching 53,690 workweeks. This is a non-reversionary settlement, and Defendants shall pay the employer's share of all applicable taxes separate and apart from the Gross Settlement Amount.

Class Members shall receive *pro rata* distributions of the Net Settlement Fund based upon the total

number of workweeks worked during the applicable class periods, with the Settlement Administrator calculating each Participating Class Member's workweeks by aggregating workweeks from both class periods and subtracting any overlapping periods to avoid double payment. The Settlement Administrator, ILYM Group, Inc., shall be appointed to administer the Settlement, including distribution of class notice and processing of claims, with administration costs not to exceed \$9,950.00 to be paid from the Gross Settlement Amount.

The Settlement further provides for the resolution of Plaintiffs' claims under the Private Attorneys General Act ("PAGA"). Defendants shall pay PAGA penalties in the amount of \$100,000.00, with seventy-five percent (\$75,000.00) allocated to the Labor and Workforce Development Agency and twenty-five percent (\$25,000.00) distributed as Individual PAGA Payments to Aggrieved Employees. The Anixter Aggrieved Employees are defined as non-exempt employees employed by Anixter entities in California from September 25, 2022, through the end of the Anixter Class Period, and the Wesco Aggrieved Employees are defined as non-exempt employees employed by Wesco entities in California from May 15, 2023, through the end of the Wesco Class Period. Individual PAGA Payments shall be calculated based upon the number of PAGA Pay Periods worked, with adjustments made to prevent double payment for any overlapping employment periods.

Class Counsel, David D. Bibiyan and Vedang J. Patel of Bibiyan Law Group, P.C., are preliminarily approved to represent the Settlement Class. Class Counsel may seek attorneys' fees in the amount of thirty-five percent (35%) of the Gross Settlement Amount, which, absent escalation, equals \$437,500.00, together with reimbursement of actual litigation costs not to exceed \$40,000.00, all to be paid from the Gross Settlement Amount. Plaintiffs Joel Jose De Alba-Padilla and Gerald Keene are preliminarily approved as Class Representatives and shall each receive a service award of \$7,500.00, for a total of \$15,000.00, in recognition of their substantial efforts in prosecuting this litigation.

The Settlement Administrator shall distribute Individual Class Payment checks and Individual PAGA Payment checks to eligible claimants within the timeframes specified in the Settlement Agreement. Any uncashed checks remaining after one hundred eighty (180) days from the date of mailing shall be transmitted to the California Controller's Office, Unclaimed Property Fund in the name of the respective Class Member, ensuring that no unpaid residue remains subject to the requirements of California Code of Civil Procedure section 384(b).

Upon final approval and the Effective Date, all Settlement Class Members who do not timely opt out shall be bound by the release provisions set forth in the Settlement Agreement, which shall constitute a complete release and discharge of all claims arising from or relating to the allegations contained in the Operative Complaint and the PAGA Notices. The Court shall retain jurisdiction over the Action to enforce the terms of the Settlement and to adjudicate any disputes arising thereunder.

The Court finds that the proposed Settlement is the product of arm's-length negotiations conducted by experienced counsel following sufficient investigation of the claims, including informal discovery and a full-day mediation before a neutral mediator, and that the terms are fair, reasonable, and adequate for preliminary approval. The Court hereby preliminarily approves the Settlement Agreement, appoints ILYM Group, Inc. as Settlement Administrator, approves the form and content of the Class Notice, and schedules a final approval hearing to determine whether the Settlement should receive final approval and whether the requested attorneys' fees, costs, and service awards should be

granted.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs' counsel seek attorneys' fees of \$437,500.00 representing thirty-five percent of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a *Lodestar* cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$40,000 and the requested representative payment of \$7,500 for each named plaintiff and class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause, therefore appearing, the Court makes the

following orders and ruling.

RULING

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on October 7, 2025 attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 22, 2026

18. 9:00 AM CASE NUMBER: C24-01377
CASE NAME: RAMON RODRIGUEZ VS. DISTRICT COUNCIL OF CONTRA COSTA COUNTY, SOCIETY OF ST. VINCENT DE PAUL, DIOCESE OF OAKLAND, A NONPROFIT CORPORATION

***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Ramon F. Rodriguez ("Plaintiff") filed a Motion for an order granting Final Approval of the Class Action and PAGA Settlement Agreement ("Settlement" or "Settlement Agreement") between Plaintiff and Defendants District Council Of Contra Costa County, Society of St. Vincent De Paul, Diocese of Oakland, a nonprofit corporation; St. Vincent De Paul Society of Contra Costa County; and St. Vincent De Paul Society ("Defendants") (collectively, "the Parties"). This Motion is unopposed and is **granted**. No appearance is required at the hearing on July 22, 2026.

Background

Plaintiff moves for final approval of the Class Action and PAGA Settlement Agreement with Defendants. This action arises from allegations that Defendants, who operate thrift stores to fund social welfare programs, violated the California Labor Code and Business and Professions Code by failing to pay minimum and overtime wages, failing to provide meal and rest periods, failing to indemnify necessary business expenses, failing to timely pay final wages, and failing to provide